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Case Number: 25STCV36679 Hearing Date: August 5, 2026 Dept: 406

TALEI TANNER,

Plaintiff,

v.

KTLA-TV, et al.,

Defendants.

Case No.: 25STCV36679

Hearing Date: August 5, 2026

[TENTATIVE]

order RE:

defendants' special motion to strike

BACKGROUND

On December 16, 2025, Plaintiff

Talei Tanner filed this action against Defendants Nexstar Media Inc.

(erroneously sued as KTLA-TV) and Josh DuBose, asserting claims for slander, libel, false light, intentional infliction of emotional distress, and negligence.

The dispute stems from an article

published by Defendants detailing arrests in association with “organized retail

theft.” The news article allegedly stated or implied that Plaintiff was arrested due to her involvement in “organized retail theft.” Plaintiff alleges that the statements are false because she was not involved in “organized retail theft” and was not arrested in connection with “organized retail theft.”

On July 2, 2026, Defendants filed the instant special motion to strike. Plaintiff filed an opposition on July 23, 2026.

LEGAL STANDARD

A special motion to strike under Code of Civil Procedure section 425.16 allows a defendant to seek early dismissal of a lawsuit that qualifies as a strategic lawsuit against public participation. A SLAPP is “a cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection.” (Code Civ. Proc., § 425.16(b)(1).)

Such acts include (1) any written or oral statement or writing made before a judicial proceeding, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a judicial body, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc., § 425.16(e).)

Evaluation of an anti-SLAPP motion requires a two-prong process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. Second, if the court finds such a showing has been made, the court must then consider whether the plaintiff has demonstrated a probability of prevailing on the claim. (*Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1035.) If both prongs are met—(1) the complaint targets protected activity, and (2) the plaintiff has no reasonable probability of success—then the lawsuit is subject to being stricken under the statute. (*Dwight R. v. Christy B.* (2013) 212 Cal.App.4th 697, 709-10.)

EVIDENTIARY

OBJECTIONS

Plaintiff's objections are overruled.

DISCUSSION

I.

Protected Activity

To satisfy the first prong, a moving defendant must identify the activity each challenged claim rests on and demonstrate that that activity is protected by the anti-SLAPP statute. (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884.) A "claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060.)

The anti-SLAPP statute protects "any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest." (Code Civ. Proc., § 425.16(e)(3).) A website is a public forum. (Cross v. Facebook, Inc. (2017) 14 Cal.App.5th 190, 199.) Courts broadly construe what is considered a matter of public interest. (Brodeur v. Atlas Entertainment, Inc. (2016) 248 Cal.App.4th 665, 674.) "[T]he issue need not be 'significant' to be protected by the anti-SLAPP statute—it is enough that it is one in which the public takes an interest." (Ibid.)

Here, the challenged publication is a news article on the KTLA website titled "5 arrested amid retail theft blitz operation in Westfield Topanga Mall area." (Compl. ¶ 7; Hill-Rodriguez Decl., Ex. A.) The article states: "Police in Los Angeles arrested five people this week in connection with organized retail theft in the area of Canoga Park, officials announced." (Ibid.) The article then lists the five purported suspects identified by the police, including "18-year-old Tanner Talei," or Plaintiff. (Ibid.)

The publication occurred in a public forum

because the article was posted on KTLA's public website. The publication concerns a matter of public interest because the article describes police action in relation to criminal activity occurring in public shopping areas. The public has an interest in the actions that officials are taking to address criminal activity. Therefore, the first prong has been satisfied.

II.

Probability of Success

a. Legal Standard

A plaintiff establishes a probability of prevailing on the claim by showing that the complaint is legally sufficient and supported by a prima facie showing of facts that, if proved at trial, would support a judgment in the plaintiff's favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 713-14.) Rather than weighing the evidence, the court must "accept as true the evidence favorable to the plaintiff . . . The plaintiff need only establish that his or her claim has 'minimal merit' to avoid being stricken as a SLAPP" (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.) The defendant's showing is only analyzed "to determine if it defeats the plaintiff's claim as a matter of law." (*Area 55, LLC v. Nicholas & Tomasevic* (2021) LLP, 61 Cal.App.5th 136, 151.)

Civil Code section 47(d) extends a privilege over a publication "[b]y a fair and true report in, or a communication to, a public journal, of (A) a judicial, (B) legislative, or (C) other public official proceeding, or (D) of anything said in the course thereof." (Civ. Code, § 47(d).) "[S]tatements are privileged if they are fair and true reports about the proceedings or of what was said in the proceedings. (*Healthsmart Pacific, Inc. v. Kabateck* (2016) 7 Cal.App.5th 416, 435, emphasis in original.) "'Fair and true' in this context does not refer to the truth or accuracy of the matters asserted in the judicial proceedings, but rather to the accuracy of the challenged statements with respect to what occurred in the judicial proceedings." (*Id.* at p. 434.)

"A 'public official proceeding' includes a police investigation." (*Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325, 1337.) "Thus, an article or broadcast about statements made in the context of a police investigation is privileged and cannot support a defamation claim." (*Ibid.*) "The privilege applies if the substance of

the publication or broadcast captures the gist or sting of the statements made in the official proceedings.” (Ibid.) The privilege “does not require the reporter to resolve the merits of the charges, nor does it require that he present the arrestee’s version of the facts.” (Rollenhagen v. City of Orange (1981) 116 Cal.App.3d 414, 427.)

Whether a report is “fair and true” in this context depends on the “natural and probable effect of the report on the mind of the average reader.” (Argentieri v. Zuckerberg (2017) 8 Cal.App.5th 768, 787, cleaned up.) “The defendant is entitled to a certain degree of ‘flexibility/literary license’ in this regard, such that the privilege will apply even if there is a slight inaccuracy in details—one that does not lead the reader to be affected differently by the report than he or she would be by the actual truth.” (Ibid.) The privilege applies unless the deviation is “substantial.” (Id. at p. 790.) Courts will not “engage in a detailed parsing of words, phrases, and sentences to note the subtle differences.” (Colt v. Freedom Communications, Inc. (2003) 109 Cal.App.4th 1551, 1558.) The privilege does not “require that newspapers be limited to word-for-word quotations from legal documents.” (Id. at p. 1560.)

b. Application

The issue here is whether KTLA fairly and accurately represented that Plaintiff was among five suspects arrested “in connection with organized retail theft.” Plaintiff does not deny engaging in retail theft or being arrested for retail theft, but she denies participating in “organized retail theft” and disclaims any relationship with the other individuals named in the article. (Tanner Decl. ¶¶ 8-23.)

The LAPD press release upon which the article is based states that the LAPD arrested “multiple theft suspects during a series of blitz operations aimed at stopping retail theft.” (Hill-Rodriguez Decl., Ex. C.) The press release stated that the operations were in response to “rising incidents of theft affecting local retail establishments in and around the Westfield Topanga Mall area.” (Ibid.) The release identified “5 suspects [who] were arrested for theft during the blitz operation,” including Plaintiff. (Ibid.) There are no references to “organized” retail theft in the LAPD press release. However, the article published by KTLA states that the five individuals were arrested “in connection with organized retail theft.” (Id., Ex. A.)

The Court finds that the KTLA article accurately captures the “gist” or “sting” of the LAPD press release. Namely, the article accurately represents that the LAPD conducted operations in three locations in relation to retail theft and arrested five individuals, including Plaintiff. It is immaterial whether Plaintiff was actually arrested or whether Plaintiff was ultimately charged with any crime. For purposes of the fair report privilege, the issue is whether Defendants accurately reported the contents of the LAPD press release, not whether Defendants accurately reported the underlying events. (See *Healthsmart Pacific, Inc.*, supra, 7 Cal.App.5th at p. 434.)

The only manner in which the KTLA article deviates from the LAPD press release is the article's use of the term “organized retail theft” in the first sentence. Plaintiff's own chart, detailing the purported differences between the press release and article, shows that the two are substantially identical in all other respects. (See Opp. at 2:18-3:9.) Plaintiff argues that the term “organized” implies “participation in a coordinated criminal enterprise, gang, mafia, theft ring, or other planned organized criminal organization,” which “conveys a substantially greater degree of criminal culpability.” (Opp. at 3:10-17.)

However, the article does not identify any criminal organization, accuse Plaintiff of being part of an organization, or describe any relationship between the five listed individuals. The article does not accuse any particular individual of coordinating the thefts with any other individual or enterprise. The article's use of the phrase “in connection with organized retail theft” falls within the flexibility and literary license afforded under the fair report privilege. (See *Argentieri*, supra, 8 Cal.App.5th at p. 787.)

At most, Defendants' use of the word “organized” constitutes a minor inaccuracy rather than a substantial deviation. (See *Argentieri*, supra, 8 Cal.App.5th at pp. 787-90.) An average reader would understand that the police conducted operations in connection with retail theft and arrested Plaintiff among four other individuals, regardless of whether the word “organized” appears in the first sentence. The single use of that word at the beginning of the article would not have changed the mind of an average reader regarding the circumstances of Plaintiff's arrest or the nature of the alleged crime. For purposes of the fair report privilege, a report “is

not to be judged by the standard of accuracy that would be adopted if it were the report of a professional law reporter or a trained lawyer.” (Id. at p. 790.)

For example, the publication in *Argentieri* fairly reported that a complaint alleged lawyers knew a contract was forged even though the complaint actually alleged that the lawyers knew or should have known of the forgery. (*Argentieri*, supra, 8 Cal.App.5th at p. 790.) Other cases are instructive as well. In *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 351-52, a news article fairly reported that a podiatrist had 22 medical board complaints filed against him even if only 6 complaints were actually filed. In *Jennings v. Telegram-Tribune Co.* (1985) 164 Cal.App.3d 119, 122-27, an article fairly reported that the plaintiff had been convicted of “tax fraud” even though the plaintiff only pleaded no contest to failing to file tax returns. In each of these cases, the challenged report arguably conveyed a greater degree of culpability than the precise truth. Nonetheless, each report fell under the fair report privilege. The same applies here.

In sum, Plaintiff has failed to demonstrate a probability of success. Because the challenged publication concerns a matter of public interest, and the claims have no probability of success, the complaint must be stricken under Code of Civil Procedure section 425.16.

CONCLUSION

Defendants’ special motion to strike is GRANTED.